

PARLIAMENT OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

CIVIL PROCEDURE CODE (AMENDMENT) ACT, No. 20 OF 2002

[Certified on 04th October, 2002]

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Civil Procedure Code (Amendment) Act, No. 20 of 2002

[Certified on 04th October, 2002]

L.D.—O. 17/2002.

AN ACT TO AMEND THE CIVIL PROCEDURE CODE

BE it enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka as follows :—

Short title.

1. This Act may be cited as the Civil Procedure Code (Amendment) Act, No. 20 of 2002.

Replacement of section 495 of Chapter 101.

2. Section 495 of the Civil Procedure Code (hereinafter referred to as the "principal enactment") is hereby repealed and the following section substituted therefor :—

"Co-defendant may be appointed.

495. A co-defendant of sound mind and of full age with no interest adverse to that of the minor may be appointed guardian for the action, but a plaintiff cannot be so appointed.".

Amendment of section 544 of the principal enactment.

3. Section 544 of the principal enactment is hereby amended in subsection (1) of that section—

(1) by the repeal of paragraph (*b*) of that section and the substitution therefor of the following paragraph :—

"(*b*) any share in a company registered in terms of the Companies Act, No. 17 of 1982 or established under any written law for the time being in force ; or"; and

(2) by the addition at the end of that subsection of the following :—

For the purposes of this section "share" shall have the same meaning as in the Companies Act, No. 17 of 1982.

Sinhala text to prevail in case of inconsistency.

4. In the event of any inconsistency between the Sinhala and Tamil texts of this Act, the Sinhala text shall prevail.

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